

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT,
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS, LLC,

Plaintiff,

vs.

Case No.: 2024-CC-2691

Division: 2

KALMAN HARTIG and ANY UNKNOWN
PARTY(S) IN POSSESSION,

Defendants.

ANSWER AND AFFIRMATIVE DEFENSES OF DEFENDANT
KALMAN HARTIG

Defendant, KALMAN HARTIG., by and through his undersigned attorney answers Plaintiff's
Complaint and says:

COUNT I

1. Defendant admits the allegations of paragraph 1 of Plaintiff's Complaint for jurisdictional and venue purposes only.
2. Defendant is without knowledge as to the allegations of paragraphs 2, 3, 9, 10, 11, 13, 14, 15, 16, 18, 19, 21, 22, 23 and 24 of Plaintiff's Complaint.
3. Defendant admits the allegations of paragraphs 4, 5 and 6 of Plaintiff's Complaint.
4. Defendant denies the allegations of paragraphs 7, 8, 12, 17, 20 and 25 of Plaintiff's Complaint.

COUNT II

5. Defendant admits the allegations of paragraph 26 of Plaintiff's Complaint for jurisdictional purposes only.
6. In response to the allegations of paragraph 27 of Plaintiff's Complaint, Defendant realleges his responses to paragraphs 1 through 25 as set forth above.
7. Defendant denies the allegations of paragraphs 28 and 29 of Plaintiff's Complaint.

8. Defendant is without knowledge as to the allegations of paragraph 30 of Plaintiff's Complaint.

FIRST AFFIRMATIVE DEFENSE

9. Defendant was specifically authorized by Plaintiff's representatives to store personal property items in his carport. Plaintiff is therefore estopped from evicting Defendant from doing so.

SECOND AFFIRMATIVE DEFENSE

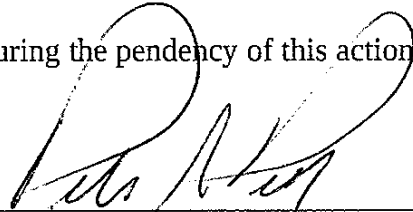
10. This eviction action constitutes retaliatory conduct by Plaintiff against Defendant pursuant to Section 723.0615, Florida Statutes.

THIRD AFFIRMATIVE DEFENSE

11. Plaintiff's Rules and Regulations are applied arbitrarily and inconsistently to all tenants in the subject mobile home park.

MOTION TO DETERMINE RENT

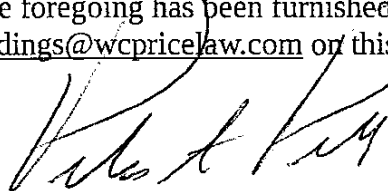
12. Defendant has attempted to pay the monthly rent due and owing to Plaintiff, however Plaintiff has failed and refused to accept same. Defendant requests a hearing to determine the amount of rent to be paid into the Clerk of Court's Registry during the pendency of this action.



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Attorney for Defendant

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing has been furnished by e-mail to William C. Price, III, Esquire, Attorney for Plaintiff, at pleadings@wcpriceiii.com on this 22 day of August, 2024.



PETER A. PEAK, ESQUIRE